

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Jeffrey Tsui	Team: Squad #15	CCRB Case #: 202200114	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 12/10/2021 7:00 PM	Location of Incident: 8290 Broadway	Precinct: 110	18 Mo. SOL 6/10/2023	EO SOL 6/10/2023	
Date/Time CV Reported Thu, 01/06/2022 11:02 AM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Thu, 01/06/2022 11:02 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO Ferry Oscar	13025	966250	110 PCT
2. PO Tresha Pharsi	13038	966276	110 PCT

Officer(s)	Allegation	Investigator Recommendation
A. PO Ferry Oscar	Abuse: Police Officer Ferry Oscar forcibly removed § 87(2)(b) to the hospital.	
B. PO Tresha Pharsi	Abuse: Police Officer Tresha Pharsi forcibly removed § 87(2)(b) to the hospital.	
§ 87(4-b) § 87(2)(g)		

Case Summary

§ 87(2)(b) filed this complaint with the CCRB over the telephone on January 6, 2022. On December 10, 2021,

§ 87(2)(b) called 911 in front of the restaurant located at 8290 Broadway in Queens to report that he had been physically assaulted by the restaurant staff. Police Officer Ferry Oscar and Police Officer Tresha Pharsi of the 110th Precinct responded to the location. § 87(2)(b) speaks Cantonese and was not proficient in English. PO Pharsi spoke to § 87(2)(b) by utilizing a Cantonese interpreter provided by the Language Line over the phone, while PO Oscar spoke with the restaurant owner. § 87(2)(b) asked the officers to take him inside the restaurant so he could identify his assailants, but the officers refused. PO Oscar and PO Pharsi called an ambulance to the location. When it arrived, § 87(2)(b) told the officers “No!”, in English. PO Oscar and PO Pharsi grabbed § 87(2)(b) by the armpits and escorted him on to the ambulance. § 87(2)(b) was transported to § 87(2)(b) (Allegations A and B: Abuse of Authority, § 87(2)(g)). When § 87(2)(b) arrived at the hospital, he was given a name tag by hospital staff and told to wait in a waiting room. § 87(2)(b) left the hospital on his own before seeing a doctor. § 87(4-b) § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b) was not issued any summonses or arrested as of result of this incident.

The incident received BWC video of the incident for PO Oscar and PO Pharsi and is attached to IA #39 (BR4) and summarized in IA #44.

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Ferry Oscar forcibly removed § 87(2)(b) to the hospital.

Allegation (B) Abuse of Authority: Police Officer Tresha Pharsi forcibly removed § 87(2)(b) to the hospital.

It is undisputed that § 87(2)(b) called 911 to report that he was assaulted by the owner and a waiter of the restaurant located at the incident location. It is undisputed that § 87(2)(b) spoke Chinese (Cantonese) and was not proficient in English. PO Pharsi spoke with § 87(2)(b) by utilizing an interpreter from the Language Line on her cellphone. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b) stated (BR1) that approximately twenty-minutes after calling 911, PO Oscar and PO Pharsi arrived at the location in their patrol vehicle. The officers spoke with § 87(2)(b) with a translation app on their cellphone and § 87(2)(b) told the officers that he was assaulted inside the restaurant by the waiter. § 87(2)(b) asked PO Oscar and PO Pharsi to bring him inside the restaurant to identify his assailant. The officers refused § 87(2)(b)'s request and called an ambulance to the location for him. When the ambulance arrived, § 87(2)(b) looked at PO Oscar and PO Pharsi and said “No, no, no” in English. § 87(2)(b) intended to tell the officers that he did not wish to be removed to the hospital. The officers grabbed § 87(2)(b) by each of his armpits and escorted him onto the ambulance. Neither PO Oscar nor PO Pharsi rode in the ambulance with § 87(2)(b). § 87(2)(b) did not receive medical attention on the ambulance and was transported to § 87(2)(b). § 87(2)(b) was given a name tag and was instructed by medical staff to wait in a waiting room upon arrival. § 87(2)(b) left the hospital before seeing a doctor. § 87(2)(b) did not mention being intoxicated during his CCRB interview.

PO Oscar's (BR2) and PO Pharsi's (BR3) statements were largely similar. Both officers stated that they observed § 87(2)(b) standing outside of the restaurant when they arrived at the location. Both officers stated that § 87(2)(b) appeared intoxicated, because he had an unsteady gait, glassy and bloodshot eyes, and had an odor of alcohol. Neither officers observed physical injuries on § 87(2)(b). PO Pharsi spoke to § 87(2)(b) through a Language Line interpreter while PO Oscar spoke with the restaurant owner. The restaurant owner told PO Oscar that § 87(2)(b) drank a bottle of E and J liquor inside his restaurant. When § 87(2)(b) exited and attempted to reenter the restaurant, the waiter refused his entry. PO Oscar stated that the owner did not mention whether there was a physical dispute between his waiter and § 87(2)(b). PO Oscar and PO Pharsi instructed § 87(2)(b) to leave the location through the Language Line interpreter at least twice. Each time, § 87(2)(b) refused by staying in front of the restaurant. PO Pharsi stated that § 87(2)(b)'s refusal to leave the location was not an arrestable offense, and PO Oscar stated that there were no reasons to arrest § 87(2)(b) at any time.

PO Oscar stated that he did not want § 87(2)(b) standing on the sidewalk intoxicated because it was late at night. PO Pharsi stated that § 87(2)(b)'s removal to the hospital was for his own safety because the incident location was a busy street with vehicle traffic. PO Pharsi stated she did not want § 87(2)(b) to step into oncoming vehicles in his intoxicated state. PO Pharsi and PO Oscar collectively decided to call an ambulance to the location to remove § 87(2)(b) to the hospital. PO Pharsi and PO Oscar gave § 87(2)(b) the option to leave the location and to go home or to get on the ambulance and go to the hospital. § 87(2)(b) refused to leave the location and go home. When the ambulance arrived, PO Pharsi and PO Oscar observed that § 87(2)(b) had an unsteady gait. The officers escorted § 87(2)(b) into the ambulance, and he was transported to § 87(2)(b). The officers stated that § 87(2)(b) could have refused to go to the hospital. PO Pharsi did not recall if § 87(2)(b) ever told officers that he did not want to go to the hospital.

The investigation obtained the FDNY Prehospital Care Report (PCR) (BR5) prepared by the responding EMS worker on December 10, 2021 (BR). On page 2, under the mental and initial neurological assessments made by EMS, § 87(2)(b)'s mental status and neurological status were both noted as "normal." Under the narrative history section, the EMS worker noted that § 87(2)(b) was alert upon arrival and stood on his own. The EMS worker further noted that § 87(2)(b) had an odor of alcohol and that § 87(2)(b) stated that he was fine and wanted to be left alone and refused to have his vitals taken. The investigation did not obtain § 87(2)(b)'s medical records for § 87(2)(b).

According to PO Oscar's BWC video (BR4), at timestamp 3:20, he speaks with the owner of the restaurant located at the location. The owner tells PO Oscar that § 87(2)(b) ate inside his restaurant and drank a whole bottle of liquor tucked he brought from outside and tucked inside of his jacket. The owner says that § 87(2)(b) took a long time to eat his meal. When § 87(2)(b) stepped out of the restaurant, the owner instructed his waiter to speak to § 87(2)(b) and tell him that he cannot drink alcohol inside the establishment because he did not have a license to serve alcohol. At this time, the owner told PO Oscar that § 87(2)(b) attempted to fight the waiter. At timestamp 4:00, the owner tells PO Oscar that he instructed his waiter to go inside and that he spoke with § 87(2)(b) himself at the corner of the restaurant. The waiter says to PO Oscar that § 87(2)(b) told the owner that he wanted to reenter the restaurant to beat the waiter. At timestamp 4:17, the owner points to § 87(2)(b)'s liquor bottle on the ground. At timestamp 4:49, PO Oscar picks up the bottle on the ground and places it away from § 87(2)(b).

According to PO Pharsi's BWC video (BR4), at timestamp 2:00, PO Pharsi calls the Language Line

and requests a Cantonese interpreter. At timestamp 2:45, PO Pharsi instructs the interpreter to ask § 87(2)(b) what happened prior to officers' arrival. At timestamp 4:00, the interpreter tells PO Pharsi that § 87(2)(b) drank alcohol while he was inside the restaurant, and when he exited and attempted to reenter, the waiter refused his entry and attempted to beat him. PO Pharsi tells § 87(2)(b) through the interpreter that the restaurant had the right to remove any one they did not want inside their business. At timestamp 5:00, § 87(2)(b) tells PO Pharsi through the interpreter that after he paid his bill and exited the restaurant, the waiter attempted to beat him. PO Pharsi asks § 87(2)(b) through the interpreter if he wanted to be checked out by an ambulance. § 87(2)(b) tells PO Pharsi he does not need an ambulance through the interpreter. At timestamp 7:20, PO Pharsi tells § 87(2)(b) through the interpreter that he had "a little too much to drink" and instructs him to go home.

According to PO Oscar's BWC video (BR4), at timestamp 17:35, an ambulance arrives at the location. At timestamp 18:09, PO Oscar waves his hand at § 87(2)(b) and asks him to follow him to the ambulance. § 87(2)(b) waves his arms around and yells, "I don't know!" at PO Oscar. PO Oscar and PO Pharsi grab § 87(2)(b) by each arm and escort him towards the ambulance. At timestamp 18:26, § 87(2)(b) tenses and flicks his arms. The officers continue to hold § 87(2)(b) and walk him to the ambulance and tells the EMS workers that § 87(2)(b) "acted disorderly." At timestamp 19:07, § 87(2)(b) enters the ambulance.

According to the NYPD Patrol Guide Procedure 221-13 (BR6), emotionally disturbed person (EDP) is defined as a person who appears to be mentally ill or temporarily deranged and is conducting himself in a manner which a police officer reasonably believes is likely to result in serious injury to himself or others. When a uniformed member of the service reasonably believes that a person who is apparently mentally ill or emotionally disturbed, [they] must be taken into protective custody because the person is conducting himself in a manner likely to result in a serious injury to himself or others.

§ 87(2)(g)

[REDACTED]

§ 87(2)(g)

[REDACTED]

§ 87(2)(g)

[REDACTED]

§ 87(2)(g)

[REDACTED]

§ 87(4-b) § 87(2)(g)

[REDACTED]

[REDACTED]

[REDACTED]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party.
- PO Oscar has been a member-of-service for four years and this is the first CCRB complaint to which he has been a subject.
- PO Pharsi has been a member-of-service for four years and this is the first CCRB complaint to which he has been a subject.

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- As of December 12, 2022, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regard to this incident (BR11).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]

Squad: _____ 15 _____

Investigator:	_____ Jeffrey Tsui Signature	_____ INV Jeffrey Tsui Print Title & Name	_____ 12/12/2022 Date
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Squad Leader:	_____ Owen Godshall Signature	_____ SI Owen Godshall Print Title & Name	_____ 12/12/2022 Date
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Reviewer:	_____ Signature	_____ Print Title & Name	_____ Date
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